BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA

UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA
INSTRUCTION 31-218

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Security

DRIVERS' LICENSING AND PERMITS WITHIN THE UNITED KINGDOM

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This instruction will implement and extend the guidance of Air Force Instruction (AFI) 31-218, 14 July 2017. This instruction implements USAFE-AFAFRICA guidance for Drivers' Licensing and Permits within the United Kingdom. This instruction may be supplemented below MAJCOM level. This instruction applies to active duty United States Air Force (USAF) units located throughout the USAFE-UK AORs. It also applies to Air Force (AF) detachments and offices located on Host Nation (HN) sites in theater. This instruction establishes responsibilities and procedures for the issuance of the USAFE Form 435, *Driving/Fuel Permit*, which the installation commanders within the United Kingdom have jurisdiction over through Air Force Instruction 31-115, *Law and Order Operations* and AFI 31-218, *Air Force Motor Vehicle Traffic Supervision*. This instruction is applicable to Air Force military, civilians, dependents, and USAF contractor personnel who require a USAFE Form 435 Driving/Permit while permanently assigned or performing temporary duty at USAF installations within the United Kingdom. This instruction applies to Air Force Reserve Command (AFRC) or Air National Guard (ANG) units under OPCON of USAFE USCR, UK. AFPD 31-1 Integrated Defense, AFI 31-218, Air Force Motor Vehicle Traffic Supervision, United Kingdom (UK) Visiting Forces Act 1952, and the Memorandum of Understanding between United States European Command as represented at the time by Headquarters (HQ) 3AF and the UK Ministry of Defence, dated 20 Nov 1989, establish the authority for implementation of this instruction. This instruction recognizes NATO SOFA, Article IV concerning Driver's Licenses and Article VII, Para 10a, authorizing US Forces to provide for security of installations made available to the US Force in the UK. Certain parts of this publication referring to fuel permit privileges are not applicable to those who are not eligible

for tax and duty free privileges. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program,* and disposed of in accordance with the Air Force Records Information Management System Records Disposition Schedule. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using AF Form 847, *Recommendation for Change of Publication*. Route AF Forms 847 from the field through the appropriate functional chain of command to HNCC, UK/IR, Unit 4840, APO AE 09459 or **usafe-uk.ir@us.af.mil**.

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1. General Requirements.

1.1. Permanent party members of the US Force, civilian components, and their command sponsored dependents must have a valid USAFE Form 435, *Driving/Fuel Permit*, to operate any vehicle in the United Kingdom (UK). **Note:** Individual driving timelines and requirements are further outlined in this instruction.

1.2. Individuals must provide proof of the following to receive a USAFE Form 435.

1.2.1. A valid and current stateside or European Union/International driver's license issued in their name at the time the USAFE Form 435 is issued. **Note:** Civilians or dependents under the age of 17, even those with a valid stateside driver's license, do not qualify for a USAFE Form 435 because they do not meet the UK's Driver and Vehicle Standards Agency (DVSA) minimum age requirement.

1.2.2. Per USAFEI 31-209, *Control of Concession Vehicles Within the United Kingdom*, all permanent party members, civilian components, and their command sponsored dependents who intend to drive must attend an Air Force Driving Class within 15 working days of arriving to the UK. **Note:** An approved Air Force Driving Class should consist of a local conditions course and a UK Highway Code equivalency test.

1.2.3. Members and their command sponsored dependents must successfully pass a UK Highway Code equivalency test in order to obtain their USAFE Form 435. **Note:**

Command sponsored dependents with a valid UK Driver's License are not required to complete the test as they are already UK licensed drivers.

1.2.4. The UK Highway Code equivalency test will be a 50 question test. A minimum score of 86% will be required to pass the test.

1.2.5. The UK Highway Code equivalency test will be administered and proctored by the separate installations. Normally, this test is built into the Installation's newcomer's briefing.

1.2.6. The USAFE UK Host Nation Coordination Cell (HNCC) will control the test bank questions and generate tests to distribute to trusted agents to ensure the questions meet or exceed the standards of the DVSA.

1.2.7. Completion of a Local Conditions Course. This course may be combined with the installation newcomers' orientation program to allow installations to be more flexible with the requirements and to manage the distinct training needs to meet both DoDI 6055.04, *DoD Traffic Safety Program*, and this instruction.

1.3. A Driver's License/Vehicle Registration Application will be signed by the individual and endorsed by the appropriate SFS/S5PR section.

1.4. Once obtained, the USAFE Form 435 must be presented immediately upon demand by proper authorities.

1.5. Dependent children that are of a legal driving age, and whom successfully obtain a USAFE Form 435, are not authorized tax and duty free fuel.

1.5.1. Per USAFEI 51-712, *Control Procedures For the Supply of Tax-Free Gasoline and Diesel Fuel in the United Kingdom*, the USAFE Form 435 will not include the sale of tax free gasoline or diesel fuel for members in this category.

2. Learner USAFE Driver Permits.

2.1. Individuals who are still learning to drive must obtain a USAFE Form 435 over stamped with the words "Learner's Permit" prior to driving on base. Individuals must provide proof of the following to receive a "Learner's permit" version of the USAFE Form 435:

2.1.1. Hold a valid British Provisional driving permit.

2.1.2. Attend a Local Conditions Course.

2.1.3. Successfully complete the UK Highway Code equivalency test.

2.2. The following statement will be typed on the reverse of the "Learner's Permit" version of the USAFE Form 435: "Must be accompanied by driver with a Full British License, or other Driver and Vehicle Licensing Agency (DVLA) authorized supervisory driver, who is at least 21 years of age, and licensed for three years."

2.3. Any vehicle operated by an individual who is still learning to drive must display a red "L" plate on the front and rear of the vehicle. **Note:** The "L" plates are required to be obtained and paid for by the learner. The plates can be purchased off-base locally at most convenience stores.

3. Implied Consent to Blood, Breath, or Urine Tests.

3.1. This requirement must be outlined as part of an installation newcomer's briefings and/or in-processing of newly assigned personnel to the UK.

3.2. Anyone who has a valid USAFE Form 435 and operates a POV is understood to have given their expressed consent to chemical tests for alcohol or other drugs on their breath or in their blood or urine if lawfully stopped by military, or UK authorities, apprehended, or cited for any offense allegedly committed while driving or otherwise in physical control of a motor vehicle upon acceptance of the USAFE Form 435. Refer to AFI 31-218 (I), Chapters 2-3, Paragraph a., for specific information.

3.3. Permit holders who refuse to submit to chemical testing will be informed that failure to submit to or complete tests administered by US Security Forces or Ministry of Defence Police (MDP) authorities will result in revocation of their USAFE Form 435 and driving privileges for a period of not less than 6 months.

3.4. Host and foreign national personnel generally have not given their consent to chemical tests upon acceptance of employment or upon entering the installation as they do not possess a USAFE Form 435. If Security Forces personnel suspect a host or foreign national of drunk driving, the servicing Staff Judge Advocate (SJA) will be consulted and MDP will be contacted to respond.

4. Motorcycle Operations.

4.1. Permanent party members of the US Armed Forces, dependents, Department of Air Force (DAF), Non-Appropriated Fund (NAF), and contractor civilians must have a motorcycle endorsement on their USAFE Form 435 to operate a motorcycle in the UK. Individuals must provide proof of the below items to receive a motorcycle endorsement on their USAFE Form 435.

4.1.1. US Forces personnel who operate or intend to operate motorcycles will comply with all motorcycle training IAW DoDI 6055.04.

4.1.2. A valid stateside driver's license or valid civilian driver's license with a motorcycle endorsement issued in their name is required at the time the USAFE Form 435 with motorcycle endorsement is issued. **Note:** Newly assigned personnel may not have had the means to obtain licensing prior to arrival to the UK. USAFE-AFRICA Director of Safety has granted installation Chiefs of Safety the ability to ensure individuals can attend an AF sponsored motorcycle training course prior to obtaining a stateside license.

4.1.3. All military personnel who are requesting to operate a motorcycle must successfully complete an approved Motorcycle Safety Course. **Note:** IAW AFI 91-207 paragraph 4.4.1, military dependents are not specifically required to attend motorcycle safety training. Additionally, DAF civilians will only receive training if their duty position description requires operating a motorcycle.

4.2. IAW AFI 91-207 paragraph 4.4.1.3, military members must possess a valid motorcycle license or have state endorsement or learners permit prior to attending AF provided courses for either initial or intermediate training.

4.3. Refer to DoDI 6055.04, *DoD Traffic Safety Program*, for Intermediate Motorcycle Safety training and refresher training due dates.

4.4. For Sport bike riders, an approved Military Sportbike Rider's Course (MSRC) or Basic Rider's Course 2 updated (BRC2u) must be taken within 60 days, but no more than 1 year, after completing initial training. Operators of three wheeled motorcycles do not require approved training.

4.5. Privately owned off-road vehicles will not be utilized on any RAF installation.

5. USAFE Driving Permit Expiration Dates.

5.1. The USAFE Form 435 expiration will coincide with the member's Date Eligible for Return from Overseas (DEROS) or five years from the issue date. After this period of time has elapsed, a second USAFE Form 435 will be issued to the individual to complete their tour of duty if required. **Note**: The USAFE Form 435 is only valid in conjunction with a current stateside driver's license.

5.2. USAFE Form 435 expiration dates:

5.2.1. Military members: End of DEROS month.

5.2.2. Appropriated fund employees: Common Access Card expiration date.

5.2.3. Non-appropriated fund and other entitled employees: One year not to exceed the expiration date on their government-issued identification card.

5.2.4. Entitled US civilian contractors: One year not to exceed the expiration date on their government-issued identification card.

5.2.5. Entitled dependents: Same as sponsor.

6. Departing Personnel.

6.1. Individuals PCS'ing from the UK are required to surrender their USAFE Form 435, and all family member's USAFE Form 435's when out-processing. If individuals are required to operate a vehicle after surrendering their USAFE Form 435, a copy of their orders will be stamped annotating they did possess a USAFE Form 435 and this will act as their permit until their final departure. **Note:** The SFS/S5PR personnel will not sign a member off for their departure earlier than 48 hours to their final out and will stamp their orders at that time.

6.2. Individuals PCS'ing to another USAFE assignment may obtain a new USAFE Form 435 with an expiration date of 10 days prior to the report no later than date of their next assignment if their USAFE Form 435 is set to expire prior to being gained by the new USAFE installation.

7. Temporary Duty (TDY) Personnel.

7.1. Individuals TDY to the UK for a period greater than 30 days (to include all Reserve and Guard members):

7.1.1. Should receive a Local Conditions Course within 15 working days upon arrival to the UK.

7.1.2. In cases where it is impractical to attend an in-person local conditions course, it is recommended that a digital local conditions packet be sent to the TDY member prior to their arrival in the UK. **Note:** IAW AFI 91-207 paragraph 4.3.2, TDY personnel will coordinate with the TDY location's safety office to obtain local conditions information.

7.1.3. Individuals who are TDY to the UK for 45 days or more should also successfully complete the UK Highway Code equivalency test.

7.1.4. Must possess a valid (or military clause) stateside driver's license or valid civilian driver's license issued in their name and must maintain a copy of their TDY orders on their person while operating a vehicle.

7.1.5. Must possess an AF Form 2293 or equivalent branch of military service Government Vehicle Driver's license to operate a GOV. **Note:** Operation of AF GOVs (owned, leased or rented) requires possession of a valid stateside motor vehicle license.

7.1.6. IAW AFI 24-301 paragraph 5.4.6.1, operation of non-tactical Air Force GMVs where the gross vehicle weight rating (GVWR) is less than 26,000 pounds, designed to transport 8 passengers or less, requires no further licensing.

7.1.7. Operation of all other AF GOVs (owned, leased or rented) require additional training and certification.

7.1.8. Completion of this additional training and certification are demonstrated on a valid AF Form 2293, USAF Motor Vehicle Operator Identification Card. **Note:** Operation is limited to those vehicles identified on the AF Form 2293.

7.1.9. May operate POVs on and off UK installations for a period not to exceed the length of their TDY if items addressed in **paragraphs 7.1.1** through **7.1.9** are met.

7.2. Military members who are TDY to the UK for a period of less than 30 days:

7.2.1. The intent and recommendation is for all TDY members to receive a local conditions course prior to driving in the UK. **Note:** IAW AFI 91-207 paragraph 4.3.2, TDY personnel will coordinate with the TDY location's safety office to obtain local conditions information.

7.2.2. In cases where it is impractical to attend a Local Conditions Course, it is recommended that a digital local conditions packet be sent to the TDY member prior to their arrival in the UK.

7.2.3. Must possess a valid stateside driver's license or a valid civilian driver's license issued in their name and must maintain a copy of their TDY orders on their person while operating a vehicle.

7.2.4. May operate POVs on and off of UK installations for a period not to exceed the length of their TDY if items addressed in **paragraphs 7.2.1** through **7.2.3** are met.

8. Contractors and Civilian Employees.

8.1. Contractors and civilian employees that do not qualify for civilian component status, or who are not covered under the SOFA, must meet the DVSA and DVLA's licensing requirements.

8.2. Under the Motor Vehicles (international Circulation) Order 1975, persons who reside outside the UK, who are temporarily in the UK, may drive on a valid domestic driving permit issued in a country outside the UK for a 12 month period from the date of their last entry into the UK.

8.3. After the 12 month period, a UK license must be obtained.

8.4. The USAFE Form 435 is not recognized as a valid UK driving permit for contractor personnel.

8.5. Civilian employees must be employed with a US military department for a minimum of 20 working hours a week to be entitled to a USAFE Form 435. This does not automatically entitle the employee to tax free fuel.

8.6. US personnel working under a UK contract are not entitled to fuel privileges unless it is expressly written into their contract.

JASON A. CAMILLETTI, Colonel, USAF
USAFE USCR, UK

Attachment 1

GLOSSARY OF REFERENCES & SUPPORTING INFORMATION

References

AFPD 31-1, *Integrated Defense*, 21 June 2018

AFI 11-215, *Flight Manuals Program*, 25 March 2019

AFI 24-301, *Ground Transportation*, 22 October 2019

AFI 31-115, *Law and Order Operations*, 18 August 2020

AFI 31-218, *Motor Vehicle Traffic Supervision*, 22 May 2006

AFI 32-1001, *Civil Engineer Operations*, 4 October 2019

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 91-207, *US Air Force Traffic Safety Program,* 26 July 2019

DAFI 33-360, *Publications and Forms Management*, 07 August 2020

DODI 6055.04, *DoD Traffic Safety Program*, 31 August 2018

USAFEI 31-209, *Control of Concession Vehicles Within the United Kingdom*, 3 October 2014

USAFEI 51-712, *Control Procedures for the Supply of Tax-Free Gasoline and Diesel Fuel In the United Kingdom*, 28 July 2014

Road Traffic Act of 1988

Public Passenger Vehicles Act of 1981 Transport Act of 1985

Manual on Uniform Traffic Control Devices (MUTCD) for Streets and Highways, 11 December 2019

Adopted Forms

AF Form 847, *Recommendation for change of Publication*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

USAFE Form 435, *Driving/Fuel Permit*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

AF—Air Force

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

ATV—All-Terrain Vehicle

BAC—Blood Alcohol Content

BRC2U—Basic Rider's Course 2 updated

DAF—Department of the Air Force

DEROS—Date Eligible to Return from Overseas

DOD—Department of Defense

DVLA—Driver and Vehicle Licensing Agency

DVSA—Driver and Vehicle Standards Agency

EO—Executive Order

GOV—Government Owned Vehicle

GVW—Gross Vehicle Weight

HNCC—Host Nation Coordination Cell

IAW—In Accordance With

LNDH—Local National Direct Hire

MoD—Ministry of Defence

MOT—Ministry of Transportation

MSRC—Major Shared Resource Center

NAF—Non-Appropriated Funds

NATO—North Atlantic Treaty Organization

OPR—Office of Primary Responsibility

PCS—Permanent Change of Station

POV—Privately Owned Vehicle

SF—Security Forces

SFS—Security Forces Squadron

SJA—Staff Judge Advocate

SOFA—Status of Forces Agreement

TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

UK—United Kingdom

US—United States

USC—United States Code

USCR—United States Country Representative

USAF—United States Air Force

USAFE—United States Air Force in Europe

USAFEI—United States Air Force in Europe Instruction

UTV—Utility Task Vehicle

Terms

Driver—Any person who drives or is in actual physical control of a motor vehicle. A driver is in physical control when in position to manipulate the controls of a motor vehicle to regulate or restrain its operation and movement. For example, sitting in a parked car behind the steering wheel, with the ignition keys in his or her possession or in the ignition switch. The engine does not have to be running or the gears engaged. Driver is interchangeable with operator.

Intoxicated driving—Includes one or more of the following:

a. Driving, operating, or being in actual physical control of a motor vehicle under any intoxication caused by alcohol or drugs in violation of UCMJ, Art. 113 or a similar law of the jurisdiction in which the vehicle is being operated.

b. Driving, operating, or being in actual physical control of a motor vehicle with a BAC of 0.08 or higher on a military installation or in an area where traffic operations are under military supervision.

c. Driving, operating, or being in actual physical control of a motor vehicle with a BAC of 0.08 or higher in violation of the law of the jurisdiction in which the vehicle is being operated.

d. Driving, operating, or being in actual physical control of a motor vehicle with a BAC of 0.05 but less than 0.08 in violation of the law of the jurisdiction in which the vehicle is being operated if the jurisdiction imposes a suspension or revocation solely on the basis of the BAC level.

Government Owned Vehicle (GOV)—A motor vehicle owned, rented or leased by the DoD. This includes vehicles owned, rented or leased by AAFES or NAF activities of the DOD. It also includes those vehicles rented, when authorized on official orders, by personnel TDY to this location.

Motor Vehicle—Any vehicle driven or drawn by mechanical power and manufactured primarily for use on public streets, roads and highways including Off-Road Vehicles.

Motorcycle—Any motor vehicle having a seat or saddle for the use of its operator and designed to travel on not more than three wheels (includes mopeds, motor scooters, and pocket bikes; does not include ATVs).

Moped—Any two–or three–wheel device having operative capability by:

a. Human propulsion power (or no pedals if powered solely by electrical energy).

b. An automatic transmission.

c. A motor that produces less than two gross brake horsepower, and (1) propels the device at a maximum speed of not more than 30 miles per hour on level ground and/or (2) has a maximum engine size of 49 cubic centimeters.

Off Road Vehicle (ORV)—A motorized vehicle with three or more wheels designed primarily for off-road use. Sometimes referred to as ATV, UTV, or ORV.

Vehicle—Motor vehicles, battery operated vehicles, horse-drawn wagons/carriages, bicycles, etc., capable of transporting operators and/or passengers.